Indigenous Rights Toolkit



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This Toolkit was completed as a final assignment for the class "Indigenous Peoples, Rights, & Environmental Justice" taught by Professor Kyle Whyte. Many thanks to Kyle for his amazing lectures and instruction throughout this semester.

Cover Image: Jim Denomie's painting titled "Four Days and Four Nights"the Detroit Art Museum's Anishinaabe Contemporary Art Exhibit. Photo by Adam Kaminsky.

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A right is a portion of ethics and morality that exists as an agreement between two or more parties. One side of the party holds a claim, and the other side is obliged to fulfill and respect that claim. Rights can be held between people, nations, animals, or other elements of nature. In today's society, rights can exist on their own, or gain legal or political clout by ratifying those rights into law.

Indigenous rights are those claims that pertain to Indigenous peoples. Ultimately, Indigenous rights are the same as human rights. However, the rights of Indigenous people have specifically been abused, leading to the need to differentiate Indigenous rights from human rights more broadly. Indigenous rights are therefore a strategy to ensure that human rights extend to Indigenous people.

While a right is a claim made between two parties, responsibilities are a form of caring that are founded on reciprocity within relationships. Traditionally, Indigenous peoples formed responsibility-based governance structures, in which people and the surrounding world held responsibilities with one another. The dish with one spoon, Gdoo-naaganinaa, is one form of relationship-based governance employed by the Anishinaabe and other North American Indigenous cultures. In this form of governance, all parties agree to care for communal lands in such a way that ensures sufficient resources for all, and enables all participant cultures to thrive. Responsibilities are enacted on a very human scale, and rely on a shared sense of caring for one another. This makes responsibility-based governance very durable and long-lasting.

A common concept in Indigenous rights is the "before" condition. "Before" refers to the state of Indigenous people and societies prior to colonization. During this time, Indigenous people existed as sovereign nations with their own territories, cultures, customs, economies, laws, and treaties. When colonial powers signed treaties with Indigenous governments, they formally acknowledged their sovereignty since treaties can only be signed by sovereign parties. The before condition is an important form of truth telling that acknowledges the sovereignty and rights that were destroyed through colonization. The before condition showcases the rights that Indigenous people are entitled to, and displays the characteristics of Indigenous sovereignty prior to colonization. By acknowledging this before condition, modern rights advocates can directly prove that rights had been breached, creating a framework for healing through rights restoration.

When colonization first began, sovereign Indigenous governments signed numerous treaties granting them rights, land, and resource protections. Although this first wave of colonization was brutal, the early colonizers did acknowledge Indigenous sovereignty. During the decolonization period of the 19th and 20th century, the newly forming nation states were expressly focused on breaking ties with former colonial powers and forming their own republics. Through this process, the new nation states ignored historical treaties associated with the old colonial powers, and violently incorporated Indigenous people into the nation. Partially, this assimilation process was due to a new philosophy of geopolitical boundaries separating distinct nations with rigid borders. Indigenous people lived within these new arbitrary borders, and therefore were seen as part of the new state. Another factor resulting in assimilation was the greed of the nation builders, who in an attempt to free themselves from the former colonies, tried to establish resource independence to prove their legitimacy and power. Among the many examples, the United States and Australia both exemplified a reprehensible breach of utti possedidis (the right to have land and property rights respected), as the revolutionaries on both continents broke ties with Britain, ignored previous treaties between Britain and Indigenous people, failed to recognize Indigenous sovereignty, and conquered lands for themselves.

Key Resources:

Åhrén, M. (2016). Indigenous Peoples' Status in the International Legal System. Oxford University Press. https://doi.org/10.1093/acprof:oso/9780198778196.001.0001

Bohaker, H. (2006). "Nindoodemag": The Significance of Algonquian Kinship Networks in the Eastern Great Lakes Region, 1600-1701. William and Mary Quarterly, 63(1), 23. https://doi.org/10.2307/3491724

Deskaheh. (1923). The Redman's Appeal for Justice.

Leanne Simpson. (2008). Looking after Gdoo-naaganinaa: Precolonial Nishnaabeg Diplomatic and Treaty Relationships. Wicazo Sa Review, 23(2), 29–42. https://doi.org/10.1353/wic.0.0001

McGregor, D. (2016). Living well with the Earth. In C. Lennox & D. Short (Eds.), Handbook of Indigenous Peoples' Rights (1st ed., pp. 167–180). Routledge. https://doi.org/10.4324/9780203119235-12

United Nations. (2007). Introduction to the UN Declaration on the Rights of Indigenous People.



Glass replica of the Dish With One Spoon Wampum Belt (Haudenosaunee), an object that represents the responsibilities of tribes to one another and the earth. https://canadiangeographic.ca/

Treaty rights are those claims bestowed by the signing of formal agreements between sovereign entities, called treaties. Indigenous people have signed countless treaties with nation states and colonial powers, guaranteeing legal protection of rights such as access to resources or the right to practice stewardship on traditional territories. Beyond the direct protection of rights, treaties also serve to legitimize the sovereignty of Indigenous nations. Despite their existence, treaties are not always respected, which is a direct breach of both national and international law. The breaking of treaty rights represents a major human rights issue because treaties often guarantee Indigenous peoples access to essential resources such as clean water, healthy food, places to worship, and medicine. All humans have a right to these necessities, and therefore a breach of treaty rights represents a breach of human rights as a whole.



Sami reindeer herding. nemisyst.github.io

The following examples of Treaties illustrate their structure and function.

1) The Sami Codicil (1751):

The Sami Codicil is a treaty signed by the Sami people and the nations of Norway and Sweden. Sami people have a longstanding history of herding reindeer across large areas of northern Scandinavia, resulting in a practice that supports Sami subsistence, culture, spirituality, and education. When the nations of Norway and Sweden formed, the newly imposed border cut through Sami territory, threatening the persistence of this vital herding practice. The Sami Codicil ensures that Sami people are able to cross the geopolitical border freely, as long as they decide which country to call their official residence for tax purposes. The continuation of Sami herding protected by this treaty ensures the right to self-determination and food sovereignty, and enables the continued practice of environmental stewardship in traditional lands.

2) The Treaty of Washington (1836):

The Treaty of Washington was signed between the Ottawa and Chippewa nations and the United States. The treaty stated that the Ottawa and Chippewa nations would cede a portion of their land, and in return would have continued access to ceded territories for the purposes of subsistence. This enshrined the right to hunt, fish, gather, and worship in the ceded territory, a right that has lasted into the present day. Through the signing of this treaty, the Ottawa and Chippewa people have continued food sovereignty protection, and the ability to practice stewardship on traditional lands.

3) Treaty of Guadalupe Hidalgo:

The Treaty of Guadalupe Hidalgo was signed between the Pueblos of the American Southwest and the United States, and ensured continued access to water, land, and resources in traditional territories. Because of this treaty, Pueblos today hold the most senior water rights, allowing them exercise their governance over water throughout the region. From an environmental standpoint, this allows Pueblos to limit wasteful or harmful colonial water use, ensuring that the natural world has continued access to vital water resources. From a societal standpoint, this treaty enables the Pueblos to continue their traditional agriculture practice to protect food sovereignty as well as cultural and spiritual practice.



Traditional Pueblo Acequia irrigation system. https://kalliopeia.org/

Indigenous peoples traditionally practiced responsibility-based governance, but nation states eroded those relationships through violent colonization. In order to protect those responsibilities that enable Indigenous governance, many Indigenous people have come to rely on treaty rights for protection. Treaty rights are a powerful tool because they are an enforceable mechanism of asserting human rights, and inherently prove Indigenous sovereignty. Treaties can be ratified and passed into the highest law of the land, making them strong and enforceable in the modern system of government. Since treaties are, by definition, signed by sovereign entities, Indigenous treaties inherently prove sovereignty, which helps asset the right to self-determination. In cases where Indigenous people have not signed treaties, this represents an injustice perpetrated by the nation states, because they failed to recognize a sovereign entity when they stole the land. The existence of treaties between some Indigenous people and the state suggests that all Indigenous people have the right to sign treaties. Overall, Treaty Rights are a powerful tool that allows Indigenous people to assert their basic human rights and prove their sovereignty. Using treaties, Indigenous people can exercise self-determination and self-governance despite the broader colonial structure.

Key Resources:

Donald Fixico. (2012). Struggle for Pueblo Water Rights in the Southwest.
Elin Hofverberg. (2021). Lappkodicillen of 1751—The Sami Magna Carta.
Margaret Mutu. (2011). Constitutional Intentions: The Treaty of Waitangi Texts
Ottawa, Chippewa. (1836). Treaty with the Ottawa, etc., 1836.
Pueblos. (1848). Treaty of Guadalupe Hidalgo; February 2, 1848.

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
University of Michigan Honoring Article XVI Program (Treaty Ft. Meigs)	Treaties	Anishinaabe endowed the university with land	Expectation of accessible education	No, but endowment helped the University get land	UNDRIP	14, 28,	No	N/A	No
Gdoo-naaganinaa	Treaty	Historic need to share territory between Anishinaabe and Haudenasaunee	Ceremony was shared amongst tribes, which solidified the bonds of the treaty and help build relationships	Yes, both nations share territories for subsistence, and therefore care equally for that land for themselves and for others	N/A	N/A	N/A	N/A	No
Great Peace of Montreal	Treaty	The fact that the 39 First Nations signatories were sovereign prior to France	Created cooperation over trade, peace, neutrality in the larger Great Lakes region	Yes, the Great Peace secured understandings of land rights in relation to trade	UNDRIP	1 - 6, 18-23, 33-37	No	N/A	Still valid for descendent's of those who signed
Jay Treaty	Treaty	Indigenous peoples' territories pre-existed the US/Canada border	When ratified by each country, it becomes the law that there must be safe passage and employment	Maybe, at least land access consequences for people crossing borders	UNDRIP	26, 36	No	N/A	No
1836 Treaty of Washington	Treaty	Ottawa and Chippewa sovereignty and subsistence responsibility in their territory (great lakes)	Subsistence rights on historical territories. Hunt, fish, gather, worship.	Yes, they ceded tenure to the majority of their land and moved to reservations.	UNDRIP	25, 26, 27, 29	No	N/A	No
Treaty of Waitangi - Waitangi Tribunal	Treaty	Maori sovereignty pre-exists NZ	Law of the land regarding Maori land ownership	Yes, Maori got landback, conservation status improved	UNDRIP	25-30	No	N/A	No, unless appealed by congress
Treaty of Guadalupe-Hidalgo Article 8	Treaty	Pueblo sovereignty but also with Spain and Mexcio	Senior water rights	Yes, Puebloan people have water rights in their territories	UNDRIP	3, 7, 26, 27, 29	No	N/A	No
Spanish Mapuche Parlamentos	Treaty	Mapuche territorial rights and culture and livelihood (their own)	It's evidence that Mapuche never submitted to Spain or Chile, and have their own distinct culture	Yes, one law Lafkecne created marine protection rights for Mapuche	UNDRIP, ADRIP	18, 20, 23, 33, 34,	No	N/A	N/A
Sámi Codicil of 1751 (from Stromstad Treaty)	Treaty	History of Sami reindeer herding as ecological practice, regardless of national borders	When Norway and Sweden formed they stated that they should not stop Sami practices. The origin of those nations has embedded rights for Sami	Yes, Sami can cross borders for pastoralism in ways that other citizens cannot	UNDRIP, ILO	8, 11, 25, 26, 29, 31, 32, 36,	Yes, Norway	4, 7, 13, 14, 15, 16,	No
Anishinaabe clans - treaties with animals	Treaty between People and Animals	Humans and Animals have lived on the same land for millennia, and are therefore equally linked to that land	Reciprocal relationship in which humans and animals sustain each other. Animals give sustenance and spiritual power and guidance, humans maintain healthy environments in which animals live and use hunting to maintain species balance	Yes, humans are obliged to take care of animal relationships and maintain healthy landscapes for animals to live	N/A	N/A	N/A	N/A	No

Many governments choose to base their governance on written constitutions that dictate the workings and functions of the country. Indigenous rights within national constitutions are those rights that are specifically written into the fabric of the constitutional documents, resulting in rights protections for Indigenous people at the highest national level.

Prior to the formation of nation states, Indigenous societies had autonomous governance over their lands and territories. When colonial powers violently stole Indigenous lands and established their own governance structures, some chose to recognize the pre-existence of Indigenous people by writing Indigenous rights into the newly formed constitutions.

Constitutional rights are enforceable to the full extent of the law through court decisions and other legal pathways, making them a powerful form of Indigenous rights. However, constitutions are always being contested, and require ratification into law to be enforced, meaning compliance is not always guaranteed.

For Indigenous people belonging to groups protected by constitutions, their rights are defensible through the legal system. Therefore, they have the potential for strong protections of land tenure, cultural expression, and self-governance.

Key Resources:

Bolivia. (2009). Bolvia (Plurinational State of)'s Constitution of 2009. Constitute Project.

Brazil. (2017). Brazil's Constitution of 1988 with Amendments through 2017. Constitute Project.

Langton, M. (n.d.). FINDING A RESOLUTION TO CONSTITUTIONAL RECOGNITION OF INDIGENOUS AUSTRALIANS.

Mexico. (2015). Mexico's Constitution of 1917 with Amendments through 2015. Constitute Project.

Nicaragua. (2014). Nicaragua's Constitution of 1987 with Amendments through 2014. Constitute Project.

United State of America. (2026). Article I | U.S. Constitution.



Bolivian citizens organizing to protect Indigenous sovereignty. Whipala flag, displayed prominently, represents the native peoples of the Andes. https://www.ipmsdl.org/

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Bolivian Constitution	Constitution	Hundreds of Indigenous peoples came before Spanish, fought for independence, came before Bolivia	Full people rights, co-governance, land tenure	Yes, there are Indigenous territories and policies protecting	UNDRIP, ILO, ADRIP	Almost all are relevant given the broad scope of protections afforded by constitution	Yes	Almost all are relevant given the broad scope of protections afforded by constitution	No, but open to amendments and subject to election cycles
Australian Constitution	Constitution	Australia colonized hundreds of aboriginal people with their own language and governments	Anti-racial discrimination, but not real Indigenous or peoplehood rights	Because peoplehood is not referenced, land tenure is ignored, which does have consequences in the sense of no recognition of Aboriginal land	UNDRIP	All should apply, but constitution does not offer any protections laid out by UNDRIP	No	N/A	No, but open to amendments and subject to election cycles

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Nicaraguan Constitution	Constitution	Indigenous groups pre-existed Nicaraguan colonial state.	Rights to land tenure, self-governance, and cultural expression	Yes, Indigenous peoples have land tenure and stewardship rights on traditional territory.	UNDRIP, ILO, ADRIP	1, 3, 8, 11, 18, 19, 25, 26, - many more are also relevant given broad constitutional protections	Yes	5, 6, 13, 14, 15, - many more are also relevant given broad constitutional protections	No, but open to amendments and subject to election cycles
India Constitution - Scheduled Tribes	Constitution	The state of India was once a collection of tribes with unique cultural expressions and governance structures. They were overtaken by colonial powers, but the nation state of India still recognizes scheduled tribes.	Anti-racial discrimination, affirmative action, welfare programs, tribal autonomy, and land rights.	Yes, safeguards against land dispossession, provides a pathway for land acquisition, stewardship rights.	UNDRIP	1, 2, 3, 4, 25, 26, 29, 33, and many due to broad constitutional rights	No	N/A	No, but open to amendments and subject to election cycles
Brazilian Constitution	Constitution	Indigenous groups pre-existed Brazilian colonial state.	Freedom of cultural expression, language, beliefs, traditions. Land tenure and stewardship rights. Resource rights. Prohibition on removal of indigenous people from lands, and on sale of Indigenous land.	Indigenous lands cannot be sold, IPs have resource rights on their land, IPs cannot be removed from lands, right to stewardship.	UNDRIP, ILO, ADRIP	1, 3, 8, 11, 18, 19, 25, 26, - many more are also relevant given broad constitutional protections	Yes	5, 6, 13, 14, 15, - many more are also relevant given broad constitutional protections	No, but open to amendments and subject to election cycles
Mexican Constitution	Constitution	Indigenous groups pre-existed Mexican colonial state.	Pluri-cultural state. Land rights, cultural expression rights. Self governance, FPIC,	Yes, Indigenous land tenure and governance rights. Stewardship rights. Depends on the specific indigenous group, however.	UNDRIP, ILO, ADRIP	1, 3, 8, 11, 18, 19, 25, 26, - many more are also relevant given broad constitutional protections	Yes	5, 6, 13, 14, 15, - many more are also relevant given broad constitutional protections	No, but open to amendments and subject to election cycles
US Constitution	Constitution	Indigenous groups pre-existed U.S colonial state, signed treaties with U.S gov, and did not voluntarily cede land in many cases.	Indigenous groups with treaties have strong sovereignty rights to access resources, and land rights. Those without treaties have few protections	Yes, treaties ensure land access and tenure, resources, and consultation	UNDRIP	25, 26, 29, 33, 37,	No	N/A	No, but open to amendments and subject to election cycles
Canadian Constitution	Constitution	First nations existed prior, signed treaties with gov, did not voluntarily cede their land	Upholds treaty rights, country will govern itself by upholding treaties	Yes, treaties reference territories where IPs live, and protect those territories	UNDRIP	25, 26, 29, 33, 37,	No	N/A	No, but open to amendments and subject to election cycles

Indigenous rights within national statutes and policies are those that are enshrined by the passing of laws and policies at the national level. Legislation is required for the enforcement and implementation of constitutional rights, as well as to codify the petition process for the rights of treaties. Prior to the formation of nation states, Indigenous societies had autonomous governance over their lands and territories. When colonial powers violently stole Indigenous lands and established their own governance structures, some chose to recognize the pre-existence of Indigenous people by passing legislation that acknowledges the rights and sovereignty of Indigenous people. For those Indigenous people protected by legislative rights, they are protected by the full extent of the law, and can leverage due process to defend their rights. Among the many rights protected in this manner, legislative rights often cover the right to land tenure, demarcation of territory, cultural practice, and self-governance. Legislative rights are enforceable to the full extent of the law. Through following due process, Indigenous people can defend their rights and settle disputes through the court system. Furthermore, since laws and policies follow public need and opinion in democratic states, voting can be a powerful tool to assert, defend, and expand legislative rights.

Key Resources:

Tawanrat Marit, Ausa Boonyalesnirun, Sakulwalai Augean and Pachara Kamchamnan. (September 2025). Indigenous Environmental Justice & Policy Learning (Thailand). Bangkok. Good Governance for Social Development and the Environment Institute (GSEI).

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Rights of Manoomin	Law	Ojibwe people have longstanding reciprocal relationship with Manoomin. Colonial land dispossession and management practices had degraded environment such that Manoomin had become scarce, disrupting the relationship and threatening food sovereignty	Right to clean water, right to environment free from industrial pollution, right to be free from plant patenting, right to be free from contamination from GMOs, right to harvest, protect, and save Manoomin seeds within the 1855 ceded territory and beyond (rights to sovereignty, self-determination, and self-government.	UNDRIP	3, 4, 5, 7, 11, 12, 13, 24, 25, 26, 29	No	N/A	No
Revisit Peru's Law of Prior Consultation (Law No. 29785) regarding gender	Law	Prior to colonization, the Indigenous people in Peru had access to and relationships with land. Colonial powers stripped them of these rights and relationships, and created dynamics in which the colonial institutions held the majority of the decision making power over land. This law attempts to reverse this trend by granting specific prior consultation rights to indigenous people in regards to actions that affect their territories, resources, or rights. With regard to gender, Indigenous people in Peru often have matriarchal societies in which women tend to hold more or equal governance power with men. Because the colonial institutions are patriarchal and still attempt to exert excessive control, they tend to consult more with the men of the societies. Thus, although the law grants consultation, the structures of patriarchy prevent ALL people in Indigenous cultures from being represented, as women are often left out of the consultative process.	Right for Indigenous people to have FPIC with regard to any projects that may impact their lands. Technically grants this right to all people in Indigenous societies, but this can tend towards favoring men in the conversation.	UNDRIP, ILO 169, Inter-American Courts	15, 26, 27	Yes	6, 7, 8, 9, 12, 13, 14 15, 16,	No, unless amended by congress
Special Tribal Criminal Jurisdiction, U.S. Violence Against Women Act	Legislation	Indigenous people in the United States had longstanding sovereignty and self governance, resulting in cultures based on morals that protected the rights of all people, especially women and children. Fraught legal structures and toxic patriarchal societies introduced by colonial settlers introduced violence against women and children into indigenous communities at a rate far above "normal". Specifically, a legal loophole used to exist where non-tribal members were immune from prosecution on tribal land, leading to excessive harm and lawbreaking. This act seeks to amend that loophole to make prosecution of illegal actions easier.	This act gives tribes the sovereign power to investigate, prosecute, convict, and sentence both Indigenous and non-Indigenous people who have committed crimes in tribally owned and manged lands.	UNDRIP	1, 4, 6, 7, 18, 19, 20,	No	N/A	Reauthorization every ~5 years

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Thai Ethnic Protection Bill 2025	Legislation, Law	Indigenous people pre-existed the Thai national government. Indigenous peoples rights abuses around land tenure and stewardship, as well as education and cultural expression.	Full protection of the law through legal proceedings. Land tenure, stewardship, cultural practices, education, language.	Yes, IPs granted land tenure rights in traditional territories, as well as the right to practice subsistence and traditional farming on territories, even if those territories are nationally protected forest lands.	UNDRIP	Almost all, 1, 2, 4, 7, 8, 25, 26, 29, 33, etc.	No	N/A	No
Norway Finnmark Act	Legislative Act	Sami people in northern Norway pre-existed the nation state. The Finnmark region was dominated by Sami people who developed their own governance structures and land use practices. Other groups of people also live in Finnmark and exist largely separately form the rest of Norway. The act attempts to codify a stronger protection of local land management in Finnmark.	Right to demarcate and defend traditional indigenous territories. Land, water, and resource protections. Tribunal to settle disputes	Yes, demarcation and tenure rights for Indigenous Sami. Water and resources rights as well.	UNDRIP, ILO 169	4, 8, 11, 18, 20, 21, 26, 29	Yes	7, 13, 14, 15,	No
Te Awa Tupua/Legal Recognition of Whanganui River	Legislative Act	Maori have long history of relying on the Te Awa Tupua as a source of food, textiles, travel, trade, spirituality, and ritual. The water has a prominent place in song, there is spirit residing in the water, and the Maori have a continual land claim to the territory surrounding the water.	Framework for laws to support the innate values of Te Awa Tupua and support Maori stewardship and relationships with the water	Not directly, but provides groundwork for future legislation that may support Maori land tenure as it relates to the Maori ability to care for and connect with the water	UNDRIP	1, 2, 3, 4, 7, 8, 10, 11, 12, 13, 24, 25, 26, 29	No	N/A	No
Te urewera	Legislative Act	The Maori people have a long history of relational reciprocity with the Te urewera region, and have deep subsistence, cultural, and spiritual ties to the land. British colonization threatened their ability to continue that relationship.	Framework for laws to support the innate values of Te Urewera, and appoints the Maori as the legal guardians of the land to continue stewardship and relationships.	Yes, this act grants Maori legal guardianship of Te Urewera, allowing them to act to defend the land through the courts and advocacy	UNDRIP	1, 2, 3, 4, 7, 8, 10, 11, 12, 13, 24, 25, 26, 29	No	N/A	No
Yurok/ Klamath Rights	Legislative Act (within Tribe, and US Law), Rights of Nature/ River	Intertwined relationship between people and the health of the Klamath River, related to ceremony, food, economy, etc. Time immemorial relationship threatened by pollution/damming. Prior to colonization, River was its own living entity with inherent rights.	Tribe can represent Klamath River in court, and prosecute people who violate River's rights. Tribe can serve as trustee to River, and has fiduciary duty to use money paid in damages for river restoration and protection.	Not directly, but could be used as leverage for Land Back. Because of river's geographic extent, extends power of tribe beyond tribal lands.	UNDRIP	1, 2, 3, 4, 7, 8, 10, 11, 12, 13, 24, 25, 26, 29	No	N/A	No
Peru Law No. 29785 (2011) "Right to Prior Consultation"	National law	Indigenous people pre-existed prior to Peruvian nation state. History of lack of consultation leading to abuse of Indigenous People	Right to prior consultation for indigenous communities	Yes, Indigenous Communities have consultative rights over decision on their land.	UNDRIP, ILO 169, ADRIP	18, 19	Yes	6, 14,	No

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Rights of Chico River, Philippines	Proposed Legislation, Law	Chico river is referred to as the "river of life" to indigenous people in the Philippines, which has sustained and nurtured the livelihood and cultures of those people for time immemorial. There is a long history now too of colonial powers exploiting the river through dams and resource extraction on its banks, dramatically altering its hydrology and adversely impacting indigenous peoples ability to connect with the water. There are ongoing proposals for new dams and other hydro-projects which would continue to harm indigenous livelihood around the river.	There is currently a bill proposed the Philippine legislature for the rights of nature, but it has not passed and has been stalled since 2019 . If it did pass, then the Chico would be eligible to receive rights of nature, which would instill governance power to the river itself and the IP stewards of the river. This could help prevent future hydro-projects and even create leverage to remove current hydro-projects in order to restore river ecology and ability of IPs to connect with the Chico.	None yet, but Rights of Nature could provide grounding for land back, and at least increased land stewardship or resource access rights.	UNDRIP	1, 2, 3, 4, 7, 8, 10, 11, 12, 13, 24, 25, 26, 29	No	N/A	Nothing passed yet



Chico River in the Philippines. https://news.mongabay.com/

The International Labor Organization (ILO)'s Convention 169 is a charter within the ILO Treaty that provides specific protection for Indigenous peoples, including land tenure and consultative rights. Some of the first abuses inflicted on Indigenous people were exacted through labor exploitation. These included forced plantation labor and genocide over land access for plantations, such as the Putumayo Genocide in Colombia and Ecuador. The ILO realized that Indigenous people were specific targets of labor abuses, and therefore codified ILO 169 in 1989 as a protective measure.

ILO 169 cannot be directly enforced, but the wording of the treaty can be leveraged in binding courts, and non-binding court decisions through ILO can be followed for those countries that have ratified ILO 169 into law. Furthermore, the network of ILO 169 countries serves a self-governing function in which each monitors the actions of others, and pressures compliance through trade and economic activity to incentive or dissuade particular actions.

For Indigenous people in participating countries, ILwO 169 provides a framework for enforcing Indigenous rights and petitioning governments to pass rights into law. These often include strong land demarcation and tenure rights dictated by Article 14, as well as consultative and self-governing rights enshrined by Articles 6 and 7.

The Finnmark Act (pg 13-14) is one example in which ILO 169 was leveraged to establish Indigenous rights.

The following is a list of countries that have ratified ILO 169 into law:

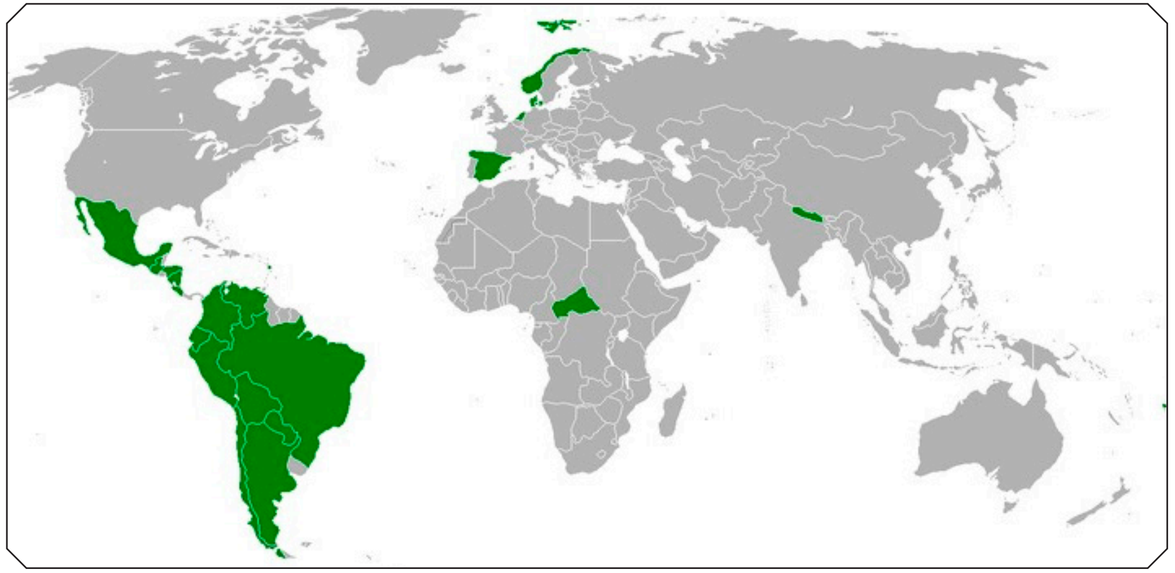
Country	Date Ratified	Status
Argentina	03 Jul 2000	In Force
Bolivia, Plurinational State of	11 Dec 1991	In Force
Brazil	25 Jul 2002	In Force
Central African Republic	30 Aug 2010	In Force
Chile	15 Sep 2008	In Force
Colombia	07 Aug 1991	In Force
Costa Rica	02 Apr 1993	In Force
Denmark	22 Feb 1996	In Force
Dominica	25 Jun 2002	In Force
Ecuador	15 May 1998	In Force
Fiji	03 Mar 1998	In Force
Guatemala	05 Jun 1996	In Force
Honduras	28 Mar 1995	In Force
Luxembourg	05 Jun 2018	In Force
Mexico	05 Sep 1990	In Force
Nepal	14 Sep 2007	In Force
Netherlands	02 Feb 1998	In Force
Nicaragua	25 Aug 2010	In Force
Norway	19 Jun 1990	In Force
Paraguay	10 Aug 1993	In Force
Peru	02 Feb 1994	In Force
Spain	15 Feb 2007	In Force
Venezuela, Republic of	22 May 2002	In Force

Key Resources:

David Baluarte. (2004). BALANCING INDIGENOUS RIGHTS AND A STATE'S RIGHT TO DEVELOP IN LATIN AMERICA: THE INTER-AMERICAN RIGHTS REGIME AND ILO CONVENTION 169.

Lee Swepston. (1990). A NEW STEP IN THE INTERNATIONAL LAW ON INDIGENOUS AND TRIBAL PEOPLES: ILO CONVENTION No. 169 OF 1989. Oklahoma City University Review.

International Labour Organization



Countries that Have Ratified ILO 169. Map derived from BlankMap-World.svgRatifications derived from the International Labour Organization website (as of 17 April 2022), CC0, https://commons.wikimedia.org/w/index.php?curid=116976609

Summary of ILO 169 Articles

PART I — General Policy (Articles 1–12)
Art. 1–2 — Definition & State obligations
Defines who qualifies as Indigenous/tribal peoples and establishes that governments must develop coordinated policies to protect their rights and integrity.
Art. 3 — Equality & non-discrimination
Guarantees full human rights and freedoms without discrimination.
Art. 4 — Special measures
Allows targeted protections to safeguard Indigenous institutions, cultures, and environment.
Art. 5 — Cultural integrity
Requires respect for social, cultural, religious, and spiritual values.
Art. 6 — Consultation & participation
Core article: governments must consult Indigenous peoples in good faith and ensure participation in decision-making.
Art. 7 — Development rights
Indigenous peoples have the right to decide their own development priorities.
Art. 8 — Customary law recognition
States must respect Indigenous customs and legal systems (within national/international law).
Art. 9 — Criminal justice & customs
Courts must consider Indigenous customs in legal proceedings.
Art. 10 — Penal systems
Encourages alternatives to imprisonment and culturally appropriate sentencing.
Art. 11 — Forced labor prohibition
Bans compulsory labor imposed on Indigenous peoples.
Art. 12 — Access to justice
Guarantees ability to bring legal claims and access interpretation in courts.

PART II — Land (Articles 13–19)
Art. 13 — Relationship to land
Recognizes spiritual and cultural importance of land and territory.
Art. 14 — Land ownership & possession
Requires recognition and protection of traditional land rights.
Art. 15 — Natural resources
Protects rights to resources; requires consultation and benefit-sharing for extraction.
Art. 16 — Relocation
Prohibits forced relocation except under strict conditions.
Art. 17 — Land transfers
Protects against exploitation in land transactions.
Art. 18 — Enforcement
States must penalize unauthorized land appropriation.
Art. 19 — Agrarian reform
Ensures Indigenous peoples benefit from land reform programs.

PART III — Recruitment & Conditions of Employment (Articles 20–23)
Art. 20 — Labor rights
Equal labor protections and safeguards against discrimination.
Art. 21 — Vocational training
Access to training programs.
Art. 22 — Traditional economies
Support for traditional subsistence activities.
Art. 23 — Rural & handicraft industries
Promotion of Indigenous economic practices.

PART IV — Vocational Training, Handicrafts, Rural Industries (Articles 24–27)
Art. 24–26 — Education & training systems
Culturally appropriate education and equal access.
Art. 27 — Program design
Education programs must reflect Indigenous needs and participation.

PART V — Social Security & Health (Articles 24–25)

Art. 25 — Health services
Health systems must be culturally appropriate and community-based.

PART VI — Education & Means of Communication (Articles 26–31)
Art. 26 — Equal education access
Education at all levels without discrimination.
Art. 27 — Indigenous participation in education
Control over educational content.
Art. 28 — Indigenous languages
Protection and promotion of Indigenous languages.
Art. 29 — Cultural content in education
Education should reflect Indigenous knowledge systems.
Art. 30 — Public awareness
States must educate broader society about Indigenous peoples.
Art. 31 — Media & communication
Access to communication systems and representation.

PART VII — Contacts & Cooperation Across Borders (Article 32)
Art. 32 — Cross-border rights
Supports cooperation among Indigenous peoples across national borders.

PART VIII — Administration (Articles 33–36)
Art. 33 — Government responsibility
States must establish institutions to implement the Convention.
Art. 34 — Flexibility
Implementation should reflect national contexts.
Art. 35 — More favorable rights
Convention sets minimum standards (states can go further).
Art. 36 — Application mechanisms
Coordination of policies and administration.

PART IX — Final Provisions (Articles 37–44)
Procedural/legal clauses on ratification, reporting, and amendments (less relevant for case law unless dealing with treaty interpretation).

Note: Summary generated with AI from official ILO website: https://www.ohchr.org/en/instruments-mechanisms/instruments/indigenous-and-tribal-peoples-convention-1989-no-169



Call to ratify ILO 169. https://www.culturalsurvival.org/

The American Declaration on the Rights of Indigenous People (ADRIP) is a doctrine passed in 2016 that codifies specific rights of Indigenous people in the Americas. ADRIP has several institutional parts, including a commission to investigate disputes, a specific court system, the Inter-American Court, which issues rulings related to ADRIP. Notably, ADRIP is one of the first to codify the specific wording of Free, Prior, and Informed Consent (FPIC), which has become a highly effective Indigenous rights tool.

ADRIP follows a long history of doctrines supporting Indigenous rights in the Americas. Prior to colonization, Indigenous people in the Americas exercised self-determination and self-governance, and ADRIP recognizes this history. The first direct link to ADRIP was the formation of the Organization of American States in 1948, which established the importance of human rights in the Americas, and wrote the American Declaration of the Rights and Duties of Man, which set up the Inter-American court and established specific civil and political rights. In states that agree to the terms of the declaration and ratify it into law, this court represents a legally binding system. ADRIP builds upon these historical declarations to specifically include Indigenous peoples, collective relations to land and property, cultural protections, consultation rights, and FPIC.

To be a member of ADRIP, states must ratify the doctrine into law, allowing the Inter-American Court system to issue legally binding rulings When a dispute is brought to the attention of ADRIP, the Commission oversees the dispute and attempts to first settle within the state. If that effort fails, the Commission brings it to the Court, who issues a binding ruling.

For Indigenous people in the Americas that participate in ADRIP, it provides a clear petition process for defending Indigenous rights, codifies specific land tenure and stewardship rights, and establishes a strong consultative process using the language of FPIC.

Among the many examples of ADRIP acting to defend the rights of Indigenous people, the case of Paillama v. Chile (2024) clearly displays the effectiveness of ADRIP.

Key Resources:

University of Minnesota Human Rights Library. (2000). The Human Rights Situation of the Indigenous People in the Americas.



Demonstrators raise the Mapuche flag in support of the Paillama decision. https://agendaestadodederecho.com/

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Inter-American Court: Paillama et al. v. Chile	Court Decision, International Convention	The Mapuche people protested the sale/exploitation of their traditional territory in 1990s, and were arrested as a result. Thanks to the newly passed American Declaration of the Rights of Indigenous People (2016), which includes language around right to defend lands, the Inter-American court sided with the Mapuche in the case.	Rights of Indigenous People to freedom of expression, fair trial, land tenure and stewardship	Yes, right to land tenure and stewardship, right to defend land rights in legal proceedings.	UNDRIP, ILO 169, ADRIP	19, 25, 26, 27, 28, 29,	Yes	6, 7, 13, 14, 15	No

Free, Prior, and Informed Consent (FPIC) is a doctrine first written into ADRIP, although ILO 169 had used similar wording to signify consultative rights in the past. FPIC ensures that before Indigenous land can be exploited by outside actors, Indigenous people with traditional connections to that land must provide consent that is free (without coercion), prior (having sufficient notice to develop a cohesive understanding of the proposition), and informed (having sufficient documentation and information in a language and format that is understandable). FPIC is not a form of self-governance, but rather a consultative right. In some cases, this consultation can lead to veto, but this is not always the case.

Indigenous peoples have longstanding relationships with the land, and historically colonial powers did not consult with Indigenous people before they took those lands for tenure and exploitation and dispossessed Indigenous people. FPIC is strategy to restore the voice and consultative power to Indigenous people, who have suffered rights violations for generations.

FPIC within the ADRIP is enforceable by the binding agreements of the Inter-American court. However, under certain circumstances nations can override FPIC, such as in cases of "national security", or when the health of Indigenous peoples are imperiled due to natural disasters such as floods or fires. Therefore, it does not fully represent veto power.

FPIC gives Indigenous people, especially those in the Inter-American system, a consultative right over their traditional territories. This means they are granted a seat at the table when colonial governments are discussing exploitation of Indigenous lands. Using FPIC, Indigenous people have power to ensure that their needs are met and their rights are defended.

Among the many cases of FPIC being leveraged, the case of Saramaka v. Suriname (2000) displays the power of FPIC to defend the rights of Indigenous people.

Key Resources:

University of Minnesota Human Rights Library. (2000). The Human Rights Situation of the Indigenous People in the Americas.



Saramaka community gathering. https://www.culturalsurvival.org/

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Inter-American Court: Saramaka v. Suriname Decision	Court Case, International	Saramaka have Indigenous connection to land, and were not consulted before the Suriname government sold extractive rights on Indigenous territory.	Right to free, prior, and informed consent for Indigenous people, recognition of Afro-Descendant communities and those with significant historical connections to land as Indigenous	Yes, recognition of Saramaka as having indigenous land rights, right to FPIC on indigenous lands.	UNDRIP, ILO 169, ADRIP	9, 19, plus land tenure articles	Yes	6, 7, 14, 15	No

The case of Awas Tingni (Mayagna Sumo Community of Awas Tingni v. Nicaragua, 2001), tied together rights derived from constitutions, ADRIP, ILO 169, and FPIC.

The Awas Tingni (AT) case began with the fact that AT Indigenous people have a constitutional and legislative right to land tenure, cultural expression, and self governance within the Nicaraguan state. When the Nicaraguan government allowed logging companies to extract resources on AT land, they violated these constitutional and legislative rights, providing grounds for the AT people to bring this case to court.

The AT case initially went to the Inter-American court system, which ruled in favor of AT people, providing a decision that was instrumental in the eventual passing of ADRIP.

The court sided with the AT people largely by citing Article 14 of ILO 169, which ensures the rights to land defense and demarcation. The Nicaraguan government had not previously demarcated AT land, as was their duty, enabling the logging companies to exploit that land, which is a direct violation of Article 14. The ruling set up the demarcation process to distinguish AT lands and write those jurisdictional boundaries into law.

The entire case was predicated on the notion that the Nicaraguan government, joint with the logging companies, did not consult with the AT people, and therefore did not receive FPIC. This fact alone played a major role in the AT people winning the case, and helped establish FPIC as a necessary right of Indigenous people throughout the world.

Finally, although the AT won this particular case, the conflict over land has not stopped in this region. The demarcation process has been fraught with corruption and exploitative colonial interest, who seek to capitalize on this process to claim land for themselves. As the issue unfolds, more aspects of Indigenous rights surface, showing the limited scope of Article 14 of ILO 169. Perhaps, now that ADRIP has passed, there may be more leverage now for a stronger response to Indigenous exploitation in Nicaragua.

Key Resources:

Bryan, J. (2019). For Nicaragua's Indigenous Communities, Land Rights in Name Only: Delineating boundaries among Indigenous and Black communities in eastern Nicaragua was supposed to guaranteed their land rights. Instead, it did the opposite. NACLA Report on the Americas, 51(1), 55–64. https://doi.org/10.1080/10714839.2019.1593692

Claudio Grossman. (2001). Awas Tingni v. Nicaragua: A Landmark Case for the Inter-American System.

Inter-American Court of Human Rights. (2001). Case of the Mayagna (Sumo) Awas Tingni Community v. Nicaragua.

Ted Macdonald and Julie Wetterslev. (2020). Accompanying a Search for Self-Determination.



Photo taken by Commissioner for Inter-American Court, Susana Villarán, when she visited Awas Tingni to inspect implementation designated by courts. www.oas.org

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
Voigt Decision (try it for yourself)	Court Decision	IPs in the great lakes were sovereign entities that had a subsistence relationship with the land	Continues Ojibwe access to historic subsistence lands despite attempts to thwart that through leveraging the 1854 treaty.	Kind of, Ojibwe still ceded their land, but this decision codified and made into law Ojibwe access to subsistence	UNDRIP	26, 27, 29	No	N/A	No, unless overturned by new case
Inter-American Court: Climate Change (Advisory Opinion 32/25)	Court Decision, Treaty Agreement	Inter-American human rights system developed for Indigenous application, deal with abuses of people who were not brought into the American nation state system. Communities are more highly vulnerable to climate change as a result of those dispossessions	All counties bound by court need to make laws based on opinion of the courts. Take climate change seriously in law.	Yes, some IPs evicted due to climate change, and territories affected by climate change	UNDRIP, ILO 169, ADRIP	29	Yes	13, 14	No
Kivalina vs. Exxon	Court Decision	Kivalina people have lived in their traditional territory for a long time, and rely on the lands and resources in the area. Human-caused climate change has resulted in the destruction of land in Kivalina territory (permafrost melting, land eroding, and sea level rising), causing undue harm to the people and preventing them from enjoying and using their public and private lands.	Courts ruled against Kivalina, so they are not owed any damages, and have no legal pathway to seek compensation for their losses. However, the recent Trump decision to remove the EPAs endangerment finding of GHGs, there may be an opportunity to sue oil companies for damages.	No	UNDRIP	1, 2, 3, 4, 5, 7, 8, 9, 10, 11, 12, 24, 26, 29	No	N/A	The decision is now open to modern interpretation as a result of the change in EPA endangerment findings
Awas Tingni Decision	National Law, International Convention, and Court Decision	History of abuse of Indigenous peoples in Nicaragua. Indigenous land sold for extraction without consent of Indigenous peoples.	Right to demarcate and defend land, right to self govern and consultative rights.	Yes, right to demarcate and reside on land, resource and stewardship rights on Indigenous territories.		7, 8, 9, 10, 11, 19, 25, 26, 27,	Yes	6, 7, 14, 15,	No
Wiwa Family v Royal Dutch Shell (settlement)	Court Settlement	Ogoni people have longstanding relationship with traditional territories, British settlers began the process of colonization and rights violations. Other Nigerian ethnic groups have perpetuated this oppression of Ogoni. Corporations such as Royal Dutch Shell have exerted the most violent human rights violations including killing Orgoni activists. This Bill of Rights attempts to assert sovereignty and lay out necessary rights of the Ogoni people	Paves the way for international organizations and corporations to be held accountable for violating human rights of Indigenous people.	No	UNDRIP	3, 7, 8, 19, 26, 29, 32,	No	N/A	N/a, single court settlement

The international indigenous rights movement began in earnest during the second half of the 19th century with the creation of the positivist school of international law. These laws advocated for the protection of native populations that had been colonized, however it still considered traditional territory to be terra nullius and therefore available for colonization. The Indigenist movement of the 1920s and 1930s led to the adoption of ILO Convention 107, which further examined the rights of Indigenous people, but although it promoted improved social and economic conditions, it took a strong assimilationist tone, and therefore ignored the history of Indigenous sovereignty and self-determination.

The rights of Indigenous people entered the discourse at the United Nations (UN) in the 1970s, during the "Decade to Combat Racial Discrimination", for which the UN held a conference dedicated to addressing discrimination specifically against Indigenous people in the Americas. Through this conference, a transnational Indigenous identity began to take shape.

The UN proceeded to develop a Working Group on Indigenous Populations, creating a distinct focus on addressing the rights of indigenous people, which helped spur the ILO to reconsider and revise its Convention 107 to meet the evolving rights frameworks uncovered by the working group. This revision of ILO 107 resulted in ILO 169, which marked a major step forward in international Indigenous rights, and forged a path for the United Nations to finally write the Declaration on the Rights of Indigenous People (UNDRIP).

ILO 169 comprehensively protects the rights of Indigenous people, and its wording has been used in countless cases throughout the world to protect and assert Indigenous rights. ILO 169 was extremely influential in the formation of UNDRIP, which uses similar language and frameworks. The international movement for the rights of Indigenous people has evolved dramatically since the 19th century, and UNDRIP represents a major milestone and baseline for the protection of Indigenous people.



Above: Map showing the Pimachiowin Aki World Heritage Site, which sits on land stewarded by Anishinaabe people since time immemorial.

Right: Image of Pimashiowin Aki boreal forest.
Both from https://canadiangeographic.ca/

UNDRIP, in addition to supporting social and economic rights, supports the defense of the environment for Indigenous people. Throughout its 46 articles, many pertain directly to environmental protection, such as Article 10 (prohibits forcible removal from land) or Article 26 (rights to occupy lands, use resources, and gain legal protection for those lands territories and resources). Additionally, many other articles that promote self determination, sovereignty and cultural protection also have environmental implications. For example, Article 11 secures the right to practice cultural traditions and customs, which for many Indigenous groups involves stewarding their land or practicing subsistence throughout their territory. This cultural continuation is contingent on a healthy and clean environment, and therefore for Article 11 to be fulfilled, the environment must also be protected.

A summary of UNDRIP Articles is as follows:

Articles 1–6: Core rights & self-determination

1. Full enjoyment of all human rights
2. Equality and freedom from discrimination
3. Right to self-determination
4. Right to autonomy/self-government
5. Maintain own institutions while participating in the state
6. Right to nationality

Articles 7–10: Survival, security, and protection

7. Right to life, integrity, and security
8. Protection from forced assimilation or cultural destruction
9. Right to belong to an Indigenous community
10. No forced relocation without consent and compensation

Articles 11–13: Culture, religion, language

11. Practice and revitalize cultural traditions
12. Religious/spiritual traditions and repatriation of remains
13. Language, oral traditions, and communication rights

Articles 14–17: Education, media, labor

14. Control over education systems and language of instruction
15. Accurate representation in education/public information
16. Right to establish Indigenous media
17. Labor rights and protection from exploitation

Articles 18–23: Participation & development

18. Participate in decision-making
19. Free, prior, and informed consent (FPIC) for laws/policies
20. Maintain economic systems and livelihoods
21. Improvement of social/economic conditions
22. Special protection for vulnerable groups (elders, women, youth)
23. Control over development priorities (health, housing, etc.)

Articles 24: Health

24. Right to traditional medicines and health systems + access to state healthcare

Articles 25–32: Land, territory, and resources (key for case law)

25. Spiritual relationship with land and resources
26. Rights to own/use/control traditional lands
27. Fair processes to recognize land rights
28. Right to restitution or compensation for taken lands
29. Environmental protection of lands
30. No military use of lands without consent
31. Control over cultural heritage and knowledge (IP rights)
32. Control over development projects; requires FPIC

Articles 33–37: Governance, identity, and treaties

33. Define own identity/membership
34. Maintain legal and institutional systems
35. Determine responsibilities within communities
36. Maintain cross-border relations
37. Recognition and enforcement of treaties/agreements

Articles 38–42: Implementation & state obligations

38. States must implement the declaration
39. Access to financial/technical assistance
40. Fair dispute resolution mechanisms
41. UN system responsibility to support implementation
42. Promotion and monitoring of the declaration

Articles 43–46: Legal status & limits

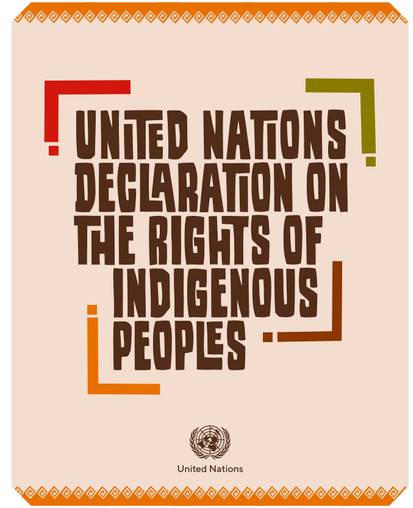
43. Minimum global standards
44. Gender equality
45. Rights cannot reduce existing rights
46. Cannot be used to undermine state sovereignty or UN principles

Key Resources:

Hohmann, J., & Weller, M. (2018). The UN declaration on the rights of indigenous peoples: A commentary. Oxford university press.

Lightfoot, S. R. (2016). Indigenous mobilization and activism in the UN system. In C. Lennox & D. Short (Eds.), Handbook of Indigenous Peoples' Rights (1st ed., pp. 253–267). Routledge. https://doi.org/10.4324/9780203119235-17

Note: Summary generated with AI from official UNDRIP website: https://www.un.org/development/desa/indigenouspeoples/wp-content/uploads/sites/19/2018/11/UNDRIP_E_web.pdf



Official cover to the UNDRIP Document.

Existing or Proposed Policy	Rights Category	"Before Condition"	In theory, what leverage does this right provide?	Land Tenure Consequences	Relevant INT Law	UNDRIP Articles	ILO 169 Relevance	ILO 169 Articles	Rights Expiration
UN Declaration on the Rights of Indigenous Peoples	International UN Resolution (non-binding)	Indigenous peoples were sovereign entities on the global stage	Defines collective rights of indigenous peoples (land ownership, cultural expression, language, identity, employment, health, education, and intellectual property)	Technically it says that IPs are eligible to own land, but does not go further than that, and is a non-legally binding resolution so hard to enforce	UNDRIP, inspired by ILO 169	All	Yes, served as inspiration	All	No
ILO 169	International Convention	Indigenous people suffering from labor abuses in nation states because they were colonized by nation state, and therefore seen as inferior to "citizens"	Land tenure, stewardship rights, consultative rights, right to demarcate lands	Yes, demarcation and land protection, stewardship rights	UNDRIP, ILO 169	All	Yes	All	No
American Declaration on the Rights of Indigenous Peoples	International Convention	IPs lived in region before American states were created, were disenfranchised when states formed, not treated equally	Land tenure, stewardship rights, right to Free Prior and Informed consent.	Yes, land stewardship and tenure protection.	UNDRIP, ILO 169, ADRIP	All	Yes	All	No
Article 21, American Convention on Human Rights	International Convention	IPs lived in region before American states were created, were disenfranchised when states formed, not treated equally	Right to property, just compensation for sale of property, can't force sale of property or dispossess indigenous peoples	Yes, direct right to property	UNDRIP, ILO 169, ADRIP	26, 27, 28, 29, 30, 31, 32,	Yes (in those countries that ratified)	13-19	No
Inter-American CHR - Rapporteur-ship on the Rights of Indigenous Ps	International Convention	IPs have been particularly vulnerable to human rights violations and have historically faced challenges asserting their rights due to unfamiliarity with a foreign system of dispute resolution, as well as language and cultural barriers.	This rapporteur-ship developed a special commission dedicated to the rights of indigenous people. This provides an accessible pathway for Indigenous dispute resolution and a special advocate of Indigenous rights.	Not directly, but the rapporteur-ship helps make sure indigenous voices are heard.	UNDRIP, ILO 169, ADRIP	3, 18, 19, 23, 37,	Yes (in those countries that ratified)	6, 7, 8, 9, 10, 12	Term limits affect individual rapporteur-ship tenure
The Escazú Agreement (in relation to environmental defenders)	International Treaty	In Latin America, people who defended their land tenure rights, or attempted to protect land from destruction had been brutally treated in the past. This was happening in concert with a lack in transparency around environmental data and impact data from proposed projects. Finally, local populations, many of whom are indigenous, were excluded from the decision making process and not granted free, prior, and informed consent	Countries covered by the agreement must pass laws to ensure transparency of data, provide a legal pathway for local participation in environmental decision, and protect environmental defenders. The international nature of the treaty also puts environmental decisions on the international stage, allowing countries to regulate each other and provide sociopolitical support and pressure.	Yes, this treaty strengthens land claims, access to information allows greater decision making and governance power in regard to land relationships, and the protection of land defenders supports people advocating for the protection of their lands.	UNDRIP	16, 21, 26, 29, 32,	Yes, for Argentina, Bolivia, Brazil, Chile, Colombia, Costa Rica, Ecuador, Guatemala, Mexico, Nicaragua, Paraguay, and Venezuela	7, 8, 9, 12, 13, 14, 15, 16,	No

Peoplehood refers to the idea that groups of individuals who share cultural and spiritual practices and values are considered a distinct people on the world stage. This creates a collective identity and culture for those groups considered peoples, setting up the conditions to receive distinct rights. Gaining a peoplehood designation for Indigenous peoples recognizes their collective identity and provides grounding for self-determination and self-governance. Peoplehood provides a pathway for indigenous people to assert collective land claims, the right to practice stewardship and subsistence, and the right to a clean and healthy environment based on their collective relationships with traditional territories. Without peoplehood, Indigenous peoples existing within modern nation states are simply considered minority populations with the same rights as any other citizen. This ignores the history of dispossession suffered by those groups, and forces assimilation into the nation state, which strips IPs of their rights to have relationships with land. Peoplehood, therefore, grants IPs a collective identity and power, which allows them to assert land claims, self-governance, and self-determination, all of which lead to environmental protection within traditional territories.

Key Resources:

Joint Select Committee on Constitutional Recognition. (2018). Makarrata.
Ogoni People. (1990). OGONI BILL OF RIGHTS.



Right: People celebrating Indigenous Peoples Day in Seattle, WA. https://www.britannica.com/

Indigenous peoples throughout the world rely on clean, healthy, and functional landscapes and ecological processes in order to practice subsistence, engage with cultural and spiritual practices, and otherwise maintain their cultural livelihoods. In the modern legal system, the environments upon which Indigenous peoples depend have no specific protections outside of their relationship to people, and therefore legal protection becomes convoluted by a need to prove harm to people via harm to the environment. The rights of nature simplifies and strengthens this pathway, as harm done directly to a protected element of nature is enough to prompt legal action. Another benefit to the rights of nature is that direct person-hood rights bestowed on natural systems provides extremely broad protections for the people who rely on those natural elements. In places where other forms of rights directly protecting Indigenous people are absent or weak, the rights of nature can be a catch-all form of broad protection. For example, when the Yurok Tribe successfully attained person-hood rights for the Klamath river, the river itself gained legal protection. Through this action, the Yurok Tribe was able to secure protection for fish (an important source of food, culture, and spirituality), the right to sustain their cultural and spiritual practices (related to the river), the right to teach and educate their children to perpetuate their cultures (reliant on the river), and even the potential right to land back adjacent to and related to the river. Rather than seeking protections for all of these elements of their lives, the Yurok were able to secure them all by attaining the rights of nature for the Klamath river.

Key Resources:

Nicole Johnson. (2013). Native Village of Kivalina v. ExxonMobil Corp: Say Goodbye to Federal Public Nuisance Claims for Greenhouse Gas Emissions.

Ruru, J. (2018). Listening to Papatūānuku: A call to reform water law. Journal of the Royal Society of New Zealand, 48(2–3), 215–224. https://doi.org/10.1080/03036758.2018.1442358

Thompson, G. E. B. (2020). CODIFYING THE RIGHTS OF NATURE; The Growing Indigenous Movement.



Above: People harvest wild rice (Manoomin). https://www.britannica.com/



Right: Artist Jackie Fawn depicts the fight to save salmon on the Klamath River. www.grist.com

When Indigenous land rights are broken, colonial powers that unjustly occupy and exploit those lands bring with them violence and harm towards Indigenous people, particularly against women and children. This phenomena arises from the fact that many land rights are breached by extractive industries, which bring a predominantly male and patriarchal workforce onto the land. This workforce lives in camps with little oversight and are dominated by men who thrive in these toxic and exploitative living conditions. Within these camps, violence against women and children is significantly elevated, creating a link between land exploitation and violence. Not every situation brings with it these man-camps, but land rights remain inseparable from the right to be free of violence. This is largely because the right to be free of violence is intrinsic to many Indigenous societies, and the continuation of those Indigenous societies is dependent on relationships with land. Therefore, in order to protect the societies that give rise to the right to be free of violence, one must first protect the land that allows those societies to survive.

Key Resources:

Appleby, G., & Davis, M. (2018). The Uluru Statement and the Promises of Truth. Australian Historical Studies, 49(4), 501–509. https://doi.org/10.1080/1031461X.2018.1523838

Joint Select Committee on Constitutional Recognition. (2018). Makarrata.

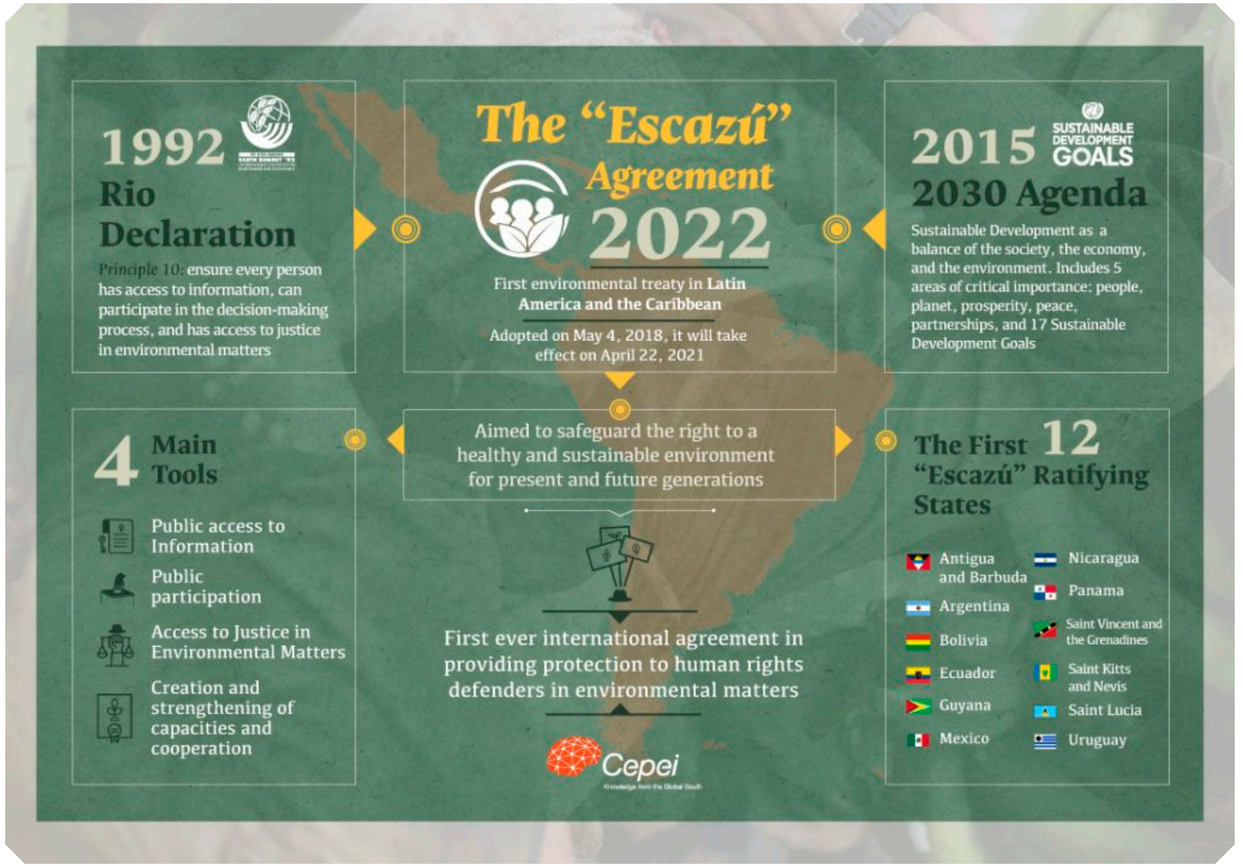
Laura Westra. (1998). Development And Environmental Racism: The Case Of Ken Saro-Wiwa And The Ogoni.

Morales, S. (2019). Digging for Rights: How Can International Human Rights Law Better Protect Indigenous Women from Extractive Industries? Canadian Journal of Women and the Law, 31(1), 58–90. https://doi.org/10.3138/cjwl.31.1.04

Ogoni People. (1990). OGONI BILL OF RIGHTS.



Colombian president Gustavo Petro signs Escazu agreement in 2024. www.pbiusa.org



Infographic discussing the Escazu agreement. www.cepei.org

Reconciliation is the process of acknowledging past mistreatment of Indigenous people and addressing the pathways to improve relationships into the future. Central to reconciliation is the process of truth telling, in which Indigenous and colonial societies come to consensus on the history of the treatment of Indigenous people. This process of truth telling reveals a universal understanding of the "before conditions" experienced by IPs, which in turn reveals solutions and sets the groundwork for self determination. Land back is an important form of self determination and self governance, and is inseparable from reconciliation. The reconciliation process reveals which lands are sacred to IPs, how IPs were dispossessed of lands, and what must be done, including land back, to heal the injustices of the past. Without reconciliation, the framework for land back is murky, and the colonial powers can turn a blind eye to the injustices justifying the need for land back. However, with reconciliation, the need for land back become universally clear, and the details around which lands are important surface, paving the way for land back to occur.

Key Resources:

Appleby, G., & Davis, M. (2018). The Uluru Statement and the Promises of Truth. Australian Historical Studies, 49(4), 501–509. https://doi.org/10.1080/1031461X.2018.1523838

Menka, N. (2025). The LandBack Movement: Native Nations and the Restoration of Ancestral Lands.

Rabliauskas, S. (2020). An Indigenous perspective: The case of Pimachiowin Aki World Mixed Cultural and Natural Heritage, Canada. (2020).



Native community in Molokai, Hawai'i, working to buy back land on the Island. Courtesy of Molokai Heritage Trust.